TOWNSHIP OF LINCOLN
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Lincoln Township Zoning Board of Appeals

Tom Godau – Chair ***Marshall Swanson*** – Vice-Chair
Cynthia Engelhardt – Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Kim Smith*** - Alternate

Roger Carey – Zoning Administrator ***Werner Mantei*** – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, October 12, 2016

The meeting was called to order by Chair Godau at 7:00 pm.

Roll Call:
Present – Board Members: Bridges, Secretary Engelhardt, Chair Godau, McCaslin, Vice-Chair Swanson,
Staff: Zoning Administrator Carey, Recording Secretary Sherrod
Absent – Building Inspector Mantei
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Approval of Minutes:
Regular Meeting minutes of August 10, 2016 – It was moved by Engelhardt and seconded by Bridges to accept the minutes as written. Motion carried 5 to 0.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated.

General Comments by Chair: Chair Godau explained the structure and functions of the township government. He went on to explain what a variance involves and how the zoning administrator deals with the steps of zoning permits, building permits, and then the process in which a permit is denied. He also explained the

roles of the zoning administrator and the building inspector. The decision of the zoning board of appeals shall be final.

A party aggrieved by the decision may appeal to the circuit court of Clare County within whichever of the following deadlines comes first:

a. Thirty days after the zoning board of appeals issues its decision in writing signed by the chairperson, if there is a chairperson, or signed by the members of the zoning board of appeals, if there is no chairperson.
b. Twenty-one days after the zoning board of appeals approves the minutes of its decision.

Purpose: Chair Godau read the following information: This is a variance request from Donald and Sandra Koppela regarding their property at 1709 Arbor Drive, Lincoln Township, Lake George, MI, 48633 whereas they are taking the position that the location of their dock is not in violation of Lincoln Township Ordinance 38, section 5.7 (a) and section 5.7 (b) and therefore should not be required to move the dock. (Sandra Koppela objected to the wording above which reflects that they stated that the location of their dock is not in violation.)

Public notice: Notice of this Public Hearing was posted in the *Clare County Cleaver* (Legal Section) on September 22, 2016. Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall and on the township's website in the calendar of events.

Brief Explanation of the Rules: Chair Godau explained that variance requests are submitted in person by the persons making the request. The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute. These provide that the ZBA must determine that a Practical Difficulty exists in order to grant a variance. These statutes ARE LAW and provide that: 1. There is a Practical Difficulty; 2. The circumstances are Unique to the Property; 3. There is Substantial Justice; 4. The issue was Not Self-Created; 5. Minimum Variance Necessary

Zoning Administrator Statement:
See Attachment #1

Petitioner's Statement: Sandra Koppela asked for ZA Carey's statement in writing so she could address them. She stated that initially she feels that this is not a correct ordinance. They are at an angle on their shore. The wedges mentioned

by ZA Carey (see attachment #1) are not guaranteed and are not sufficient to maintain their insurance coverage. She has sought advice from CMU School of Engineering and another engineer. They told her that the solution would cost more than the Koppelas could afford. She presented pictures and referred to how limited they are in where the dock can go according to old markers.

McCaslin asked about distances shown in the pictures being passed around.

S. Koppela said that the issue is that they are sitting on an angle; every time they move the dock to conform, it causes more structural problems. She then presented more pictures of other docks around the lake which she claimed show the same angles as are present in the Koppela dock. She said that the lake is challenging. She also showed a picture which she maintains shows that the next door neighbor is not keeping to the proper lines.

Engelhardt asked about how they dock their boats as well as how the neighbor does.

S. Koppela then reiterated that the lake is difficult and makes it nearly impossible to place the dock according to the requirements of the ordinance.

ZBA Members Comments & Questions:
Chair Godau stated that the issue as he sees it is not that the dock is at an angle but that it does not meet the required twelve foot setback. Don Koppela then asked if they were here just because the dock is not straight.

Godau answered that the issue is not that it is not straight but that it does not have a twelve foot setback in terms of the projected lines from the property into the center of the lake. Lot lines go out to the center of the lake. Those projected lines are what determine the twelve foot setback. As Godau understands the issue; there is not enough clearance between the Koppelas and the neighbor and they are not meeting the twelve foot setback.

Koppelas: it is only the last six feet of the dock that don't meet the setback.

McCaslin: You said your property is 30 foot, right? Koppelas: Yes. McCaslin: Is there any reason you can't put the dock on the other side of the steps?

Koppelas answered that there is not enough room.

McCaslin asked about the insurance not covering this. S. Koppela checked with her insurance and they asked about if the wedge would be approved. The answer was that they would be covered only if the wedge was designed and made by an engineer.

Engelhardt: Can we go back to the diagram and the stairs? It looks like you have 25.6 feet; why can't you put the dock over on the other side?

S. Koppela: It will still encroach. She then explained what she has figured and how it won't work.

Engelhardt: You have 40 feet frontage; with that you ought to be able to put in a dock.

D. Koppela: That is where the dock has been for 18 years.

Engelhardt: You are creating a safety issue.

D. Koppela went and looked at what Engelhardt and McCaslin are suggesting and tried to explain to S. Koppela that it could work.

McCaslin asked ZA Carey about the boat; he replied that the boat has to be 2 feet from the neighbor's line.

S. Koppela: We will take off the last section of dock and it will comply. She explained that the angles are not allowing her to move either end of the dock enough to comply. The wedge is the answer but she will not do that if it will jeopardize their insurance.

McCaslin: Move the stairs.

Swanson: You said the fueling is on the wrong side to change it; just turn it around to fill it.

D. Koppela: On a busy weekend that would endanger my motor as it gets really rough.

S. Koppela: We will just take off the last section of dock.

Godau then stated the purpose of this hearing. It is not the board's role to engineer or find multiple solutions. Its role is to analyze whatever is presented to the board and how it applies to the local township ordinances.

S. Koppela: How can ZA Carey say that this is self-created because we bought the property this way?

Godau explained that they can put their dock anywhere as long as it stays within the twelve foot setback and the boat stays within the two foot setback. It is self-created not because of the angle, but by how they placed their dock.

Bridges: It isn't a matter of the angle, but the infringement.

D. Koppela: What is it that you want me to do?

Godau tried to demonstrate the issue by using objects. Why can't you put your dock on top of the seawall, then you can put it anywhere and at any angle.

D. Koppela explained why he can't do what Godau suggested. Then he said that he gets it, but still doesn't think it would give enough room.

S. Koppela stated that both counsel and ZA Carey told her that the issue is that her dock must be straight.

Godau explained that this just means "straight" in terms of the projected lines from the shore to the center of the lake.

Public Comment: Godau read the four pieces of correspondence that were received concerning this hearing.

Public Comment Closed by Chair

Discussion and Further Questions by ZBA Members: None

Public Comment: Bridges made a comment comparing this to a person building a garage which is partially on another piece of property. If your pontoon is over the property line you are infringing on the other person's rights. We can only decide on whether or not you are violating the ordinance.

D. Koppela explained that the boat is not on the neighbor's property the way he sees it.

Bridges stated that the only way to resolve this is to get a riparian survey. This is a neighbor dispute which the board cannot address.

S. Koppela: your ordinance does not address riparian anywhere.

Bridges: It talks about property lines.

D. Koppela: I am going to take the front piece and move it so that it maintains the twelve and a half feet. But the neighbor will be calling you next spring when I do this.

Finding of Fact: The board finalized their finding of facts and turned them in to Chair Godau to compile.

Final Decision: Godau requested a motion from the board. Bridges made a motion to deny the request for variance. McCaslin seconded.

Godau explained that this motion requires a *yea* or *nay* in support of the motion.

Roll Call Vote:
Bridges: **Y;** Engelhardt: **Y;** Godau: **Y**; McCaslin: **Y**; Swanson: **Y**

Motion Passed: 5 Yeas; o Nays. Variance is **Denied**.

Adjournment: Engelhardt moved to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 8:21 pm.

Respectfully Submitted,

Cindy Engelhardt, Secretary

Attachment #1

Zoning Administrator's Statement

I'm going to start my report by stating that, I'm not going to defend my positions **to the complainant**, however I will answer any question directed to me by the Zoning Board of Appeals.

Our Ordinances are the law. Lincoln Township, Ordinance 38, Lake, Dock and Boat Ordinance says: SETBACK REQUIREMENTS. No dock shall be placed within twelve (12) feet of the side lot lines of a lot or parcel as extended to the center of the Lake. The Kopella's dock clearly does not follow this, violating our Ordinance 38.

The ZBA should grant a variance from the township's zoning laws only after the property in question meets stringent tests described in the zoning ordinance. The zoning regulations are ultimately intended to protect the general health, safety and welfare of the township. Practical Difficulty: Lincoln Township has a set of criteria an applicant must meet to be allowed a Variance. An applicant must meet each of the 5 criteria's for a variance, not 4 or 3, all 5 practical difficulties.

For Practical Difficulty: the Kopella's claim their property is at an angle and their dock is set square with the seawall and the angle prevents (straight enough) projection. I have seen many properties with this situation and they have a wedge that straightens the dock out. I have talked to Marine Automated Dock Systems, 2900 Doc Drive, Harrison MI and they make these wedges. There is no Practical Difficulty.

Unique Situation: as the statement under Practical Difficulty shows, there is no Unique Situation.

Substantial Justice: means a variance would not be significantly detrimental to adjacent property. You've all seen the picture of the dock and pontoons, the situation, as it is, is very detrimental to the adjacent property.

Not Self-Created: The Kopella's purchased the property the way it is, with the angle, it was self - created.

Minimum Variance Necessary: This does not apply as there is no practical difficulty.